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## I. STATEMENT OF POLICY

The following are countable resources:

- Cash,
- Checking accounts,
- Saving accounts, including money market accounts,
- Certificates of deposit (CDs),
- Stocks, including mutual funds,
- Bonds, and
- Credit card company gift cards, prepaid debit cards, and payroll deposit debit card accounts.

Note: Any exempt resource that is kept in a separate account remains exempt. If an exempt resource is combined with money which is countable, exempt the excluded funds for six months from the date the funds are combined. After six months, count the total amount of combined funds as an available resource.

Exception: Resources for individuals who are not traditional Categorically Eligible (Refer to policy at [E-280-SNAP](#)), must meet required resource limits (Refer to policy at [B-1030-SNAP](#)).

### **B-1040-1-SNAP - PO AGENT ORANGE SETTLEMENT PAYMENTS AS A RESOURCE**

Exempt payments made from the Agent Orange Settlement Fund. This includes both disability payments made to veterans each year they are disabled and non-recurring lump-sum payments made to survivors of deceased veterans. This exclusion is retroactive to January 1, 1989.

### **B-1040-1-A SNAP – PO ACHIEVING A BETTER LIFE EXPERIENCE (ABLE)**

Exempt the value of ABLE accounts. An ABLE account is a tax-favored savings account established to provide secure funding for disability-related expenses on behalf of designated beneficiaries deemed disabled before the age of 26 years old.

### **B-1040-2-SNAP - PO CERTIFICATES OF DEPOSIT**

Count the value of Certificates of Deposit (CDs) as an available resource. If there is a penalty for early withdrawal, count the amount the client would receive if the CD is cashed in. If the CD is collateral for a loan, count the amount the client would receive after payoff of the loan.

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### **B-1040-3-SNAP - PO DISASTER PAYMENTS AS A RESOURCE**

Exempt Disaster Payments provided as a result of a Presidentially-Declared emergency or major disaster. This includes federal assistance provided to persons directly affected and to comparable disaster assistance provided by states, local governments, and disaster assistance organizations. This includes Individual and Family Grant (IFG) payments, Small Business Administration (SBA) loans, and Federal Emergency Management Agency (FEMA) payments.

### **B-1040-4-SNAP - PO Earned Income Tax Credit as a Resource**

Exempt federal Earned Income Tax Credits (EITC) received either as a lump sum or as payments under Section 3507 of the Internal Revenue Code.

Exempt any federal, state, or local EITC (including EITC exemption under Section 3507), as resources for 12 months from the date of receipt. Therefore, if a refund is received on March 15, it will be excluded through March 14 of the following year.

### **B-1040-5-SNAP - PO Educational Assistance**

Exempt all educational assistance, including, but not limited to:

- Funds received from educational grants, loans, and scholarships,
- Qualified tuition programs established under Section 529 of the Internal Revenue Code, and
- Funds in a Coverdell education savings account under Section 530 of the Internal Revenue Code.

### **B-1040-6-SNAP - PO Student Tuition Assistance and Revenue Trust (START) Saving Program**

Exempt the cash value of an Education Savings Account (ESA) established through the Student Tuition Assistance and Revenue Trust ([START](#)) Saving Program. The START Saving Program is administered by the Louisiana Office of Student Financial Assistance. An ESA may be opened on behalf of a named beneficiary by any Louisiana resident.

### **B-1040-7-SNAP - PO Energy Assistance Payments as a Resource**

Exempt payments or allowances made for the purpose of providing energy assistance under any federal law other than Title IV-A of the Social Security Act (TANF).

### **B-1040-7A-SNAP - PO Gift Cards**

Establishment-specific gift cards are not counted as a resource. The value of credit card company gift cards and prepaid debit cards are counted as a resource.

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### **B-1040-8-SNAP - PO Housing and Urban Development (HUD) Benefits as a Resource**

Exempt only HUD retroactive tax and utility cost subsidies issued because of the settlement of Underwood vs. Harris against HUD for the month in which the payment was received and for the following month.

### **B-1040-9-SNAP - PO Income as a Resource**

Do not count income from any source as a resource in the month of receipt.

Do not count as a resource money which has been prorated as income. If this money is combined with countable funds, such as a bank account, exempt the prorated amounts for the time it is prorated. An example is self-employment income.

### **B-1040-10-SNAP - PO Indian and Native Claims and Lands Payments as a Resource**

Exempt payments received under the following acts:

- Public Law 92-203, Section 21(a) (Alaska Native Claims Settlement Act),
- Public Law 94-189 (Sac and Fox Indian Claims Agreement),
- Public Law 94-540 (Grand River Band of Ottawa Indians),
- Public Law 96-420 Section 5 (Passamaquoddy Tribe and the Penobscot Nation received according to the Maine Indian Claims Settlement Act of 1980),
- Public Law 95-433, Section 2, Confederated Tribes and Bands of the Yakima Nation and the Apache Tribe of the Mescalero Reservation received from the Claims Commission, and
- Public Law 93-531 (Navajo and Hopi Tribes).

Exempt payments received by certain Indian tribal members under Public Law 94-114, Sect. 6, regarding submarginal lands held in trust by the United States.

Exempt payments from Indian lands held jointly with the tribe or land that can be sold only with approval of the Bureau of Indian Affairs.

### **B-1040-11-SNAP - PO Individual Development Accounts (IDA)**

Exempt Individual Development Accounts.

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### **B-1040-12-SNAP - PO Individual Retirement Accounts (IRAs) as a Resource**

Exempt the value of IRAs.

### **B-1040-13-SNAP - PO Insurance Settlements**

Insurance settlements are considered a lump-sum payment.

### **B-1040-14-SNAP - PO Joint Accounts**

Consider resources as inaccessible to a victim of domestic violence if the resources are jointly owned with a member of the former household and the individual is unable to access the resource because of fear for her safety or because the joint owner will not allow it, etc. The individual must verify the status as a victim of domestic violence and verify that she cannot access the resource for her personal use.

Count the entire value as available to each of the joint owners.

Exceptions:

- If the client's name is on another individual's account for convenience purposes only, the account may be disregarded provided all of the following circumstances exist:
  - The client's name was placed on the account to enable the client to transact business for the other individual such as an elderly or disabled parent;
  - The client does not contribute to the account, and does not use money from the account for personal needs;
  - The client is accountable to the other individual for actions on the bank account; and
  - The other individual is contacted and verifies that the money does not belong to the client and may not be used to meet the client's needs.
- If an SSI recipient and a non-SSI recipient, who are members of the same SNAP household, jointly own an account, the account shall be treated as if it were solely owned by the SSI recipient.

### **B-1040-15-SNAP - PO Keogh Plans as a Resource**

Exempt the value of Keogh Plans.

### **B-1040-16-SNAP - PO Loans as a Resource**

All loans, both business and personal, other than deferred repayment educational loans, are counted as resources in the month received even if the household anticipates spending some or all of it in the

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same month. Any amount remaining after month of receipt continues to be counted a resource until the money is spent.

### **B-1040-17-SNAP - PO Lump-Sum Payments as a Resource**

Count non-recurring lump-sum payments as resources in the month received.

Non-recurring payments are payments which are received one time only and are not anticipated to be received again. Consider payments which are recurring as income.

Countable lump-sum payments include, but are not limited to, income tax refunds, retroactive lump-sum initial social security or UCB, worker's compensation, insurance settlements, and refunds of security deposits on rental property or utilities. Count the gross amount before attorneys' fees are deducted.

When a lump-sum payment is earmarked for a specific purpose, allow the client six months to use the money for the purpose for which it was received.

Exempt Federal tax refunds as a resource for 12 months from the date of receipt. The Federal tax refund must be excluded from the household's resources by subtracting the amount of federal tax refund received by the household in the last 12 months from the household's resources. If the difference between the resources and the amount of the Federal tax refund is less than the resource limit, the household meets the resource limit.

Example: Ms. Smith reported that she has a balance of \* \$4500 in her checking account at application for SNAP on 02/01/11. She stated that she received an \$1850 refund from her Federal taxes on 07/2/10. The worker requested verification of the tax refund and received a copy of the client's 08/10 checking account statement showing the \$1850 was directly deposited into the account on 07/2/10. Ms. Smith is below the household's \$3000 resource limit after subtracting the amount of the federal tax refund from the checking account balance (\$4500 - \$1850 = \$2650). \*\*

### **B-1040-18-SNAP - PO Payments to Victims of Nazi Persecution**

Payments made to individuals because of their status as victims of Nazi persecution are exempt.

### **B-1040-19-SNAP - PO Relocation Assistance as a Resource**

Exempt reimbursements from the Uniform Relocation Assistance and Real Properties Acquisition Policy Act of 1970.

### **B-1040-20-SNAP - PO Retirement Plans as a Resource**

Exempt the value of pension plans.

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### **B-1040-21-SNAP - PO Trust Funds as a Resource**

Exempt trust funds if all of the following conditions are met:

- The trust arrangement is unlikely to end during the certification period and no household member can revoke the trust agreement or change the name of the beneficiary during the certification period.
- The trustee of the fund is either:
  - A court, institution, corporation, or organization not under the direction or ownership of a household member, or
  - A court-appointed individual who has court-imposed limitations placed on the use of the funds.
- The trust investments do not directly involve or help any business or corporation under the control, direction, or influence of a household member. Exempt trusts established from the household's own funds if the trustee uses the funds only to make investments on behalf of the trust or to pay the education or medical expense of the beneficiary.

### **B-1040-22-SNAP - PO Tutorship Funds as a Resource**

Funds awarded to a minor to be managed by a tutor or tutrix in accordance with the law of tutorship are not accessible for the maintenance and support of the household and are therefore excluded.

The client must provide documentation to verify the funds are covered under the law of tutorship.

### **B-1040-23-SNAP - PO Wartime Relocation of Civilians Payments**

Exempt the following payments made through the Wartime Relocation of Civilians Law:

- Payments of \$20,000 made to eligible persons of Japanese ancestry who were interned during World War II, or such payments made to the spouse, children or parents if the eligible individual is deceased.
- Payments of \$12,000 made to eligible Aleuts who were relocated from their home on the Pribilof or Aleutian Islands to an internment camp during World War II, or such payments made to an individual who was born while his mother was relocated.

### **B-1040-24-SNAP - PO Winnings from Gambling**

Winnings from gambling (lottery, etc.) that are non-recurring and are not anticipated to be received again are considered as a resource in the month received.

Refer to [B-620-55A-FITAP/SNAP](#) for winnings from gambling that are recurring.

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## II. PROCEDURES

Enter all countable resources in LITE for each SNAP household.

## III. FORMS AND INSTRUCTIONS

There are no forms and instructions associated with this policy.

## IV. REFERENCES

[7CFR 273.8](#)

[LAC 67:III](#) Chapter 19, Subchapter H